



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Senior Planner
Subject: PLTA-24-6 – Amending UDC to create the BP zone district, make conforming amendments to the code, and to amend sections which reference zone districts.
Date: September 9, 2024

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/9/2024
- Public Services Committee 9/17/2024
- Second reading 9/23/2024
- Public Services Committee 10/8/2024
- Third and final reading 10/14/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their September 3, 2024, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment.

The Planning Commission Staff report is attached and has not been changed, except that the redline Ordinance attached at the end was removed to reduce confusion. The Ordinance in this packet is not substantively changed from the Ordinance reviewed by the Planning Commission.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) OF THE CITY OF CHEYENNE, WYOMING, TO CREATE THE BP BUSINESS PARK ZONE DISTRICT AND MAKING CONFORMING AMENDMENTS TO LOCATIONS THROUGHOUT THE UDC REFERENCING ZONE DISTRICTS; AND AMENDING THE UDC TO CORRECT REFERENCES ASSOCIATED WITH THE SS SUPPORT SERVICES DISTRICT."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to provide flexibility for and encourage a variety of uses in large-scale business parks, and to update various locations where zones are referenced to include newly created zone districts.

Section 3. That on September 3, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That Sub-section 1.4.3, Defined Terms, in Section 1.4 Interpretation, of Article 1, General Provisions is amended to create a new definition "Caretaker Unit. One or more living quarters or lodging facilities located within a non-residential building for the use of employees of the use. A Caretaker Unit shall not be considered a 'residential use' or 'residential unit' for the purposes of this code but shall be considered part of the non-residential square footage for the purposes of the code. The combined square footage of all Caretaker Units shall not comprise more than ten (10) percent of the principal use's building square footage (should dwelling area exceed this amount, the living area shall be determined to be a "Mixed-use Dwelling" and a residential use for the purposes of this code). A Caretaker Unit is allowed as part of the approval of the principal use without any more restrictive approval process than that warranted for the principal use."

Section 5. That Sub-section 5.1.2, Zoning Districts Established, in Section 5.1 General Provisions, of Article 5, Zoning Regulations is amended to create a new row "BP | Business Park" after the "MUE | Mixed-Use Employment Emphasis" row, and a new row "SS | Support Services" after the "AD | Airport District" row.

Section 6. That Table 5-1, Zoning District Uses, in Sub-section 5.1.4, Districts and Uses, of Section 5.1 General Provisions, of Article 5, Zoning Regulations is amended to create a new column "BP" between columns "MUE" and "AD" showing uses as follows:

Permitted Uses:

Residential Uses:

<none>

Civic Uses:

Community Athletic Field

Developed Athletic Field or Stadium

Service Uses:

Service Business - Limited

Service Business – General

Child Care Center (CCC)

Entertainment, Indoor Recreation Facility

Entertainment, Outdoor Recreation Facility

Entertainment, Venue (1000+ maximum occupancy)

Kennel

Lodging, Hotel / Motel

Medical Care, Clinic and Office

Medical Care, Hospital

Employment Uses:

Home occupations

Office – Limited (<3,500)

Office – general (3,500 – 20K)

Office – Major Office Complex (>20K)

Commercial Uses:

Convenience Retail / Corner Store (<2k)

Neighborhood Retail (2K - 5K)

General Retail (5K - 25K)

Large-scale Retail (25K - 100K)

Warehouse Retail (> 100K)

Grocery Store <45K

Supermarket > 45K

Automobile Service Repair

Automobile Service Station - Limited

Automobile Service Station - General

Automobile Service Station – Large-scale

Food Service – Limited (under 2K)

Food Service – General (2K – 4K)

Food Service – Large-scale (over 4k)

Industrial Uses:

Data Center

Limited Industrial

Moderate Industrial

General Industrial

Limited Outdoor Storage

Railroad yards and maintenance buildings

Public Service Uses:
Commercial and Public Parking Facility
Government Facility
Transportation facilities
Utility Stations
Agriculture Uses:
<none>

Administrative Uses
<none>

Conditional Uses:
Residential Uses:
Live/Work
Mixed-use Dwelling
Civic Uses:
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Primary and secondary schools
Educational Facilities
Service Uses:
Entertainment, Amusement, Recreation—Other
Storage, Yard
Employment Uses:
<none>
Commercial Uses:
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Outdoor Sales, Limited
Outdoor Sales
Industrial Uses:
Industrial
Public Service Uses:
Recycling Services
Agriculture Uses:
<none>

Section 7. That Sub-section 5.4.7 BP – Business Park, of Section 5.4 Commercial and Mixed-use Districts Standards of Article 5, Zoning Regulations, is created to read as follows:

5.4.7 BP-Business Park

- a. **Intent.** The Business Park (BP) district is intended to support small and large-scale industrial development while providing essential commercial services along regional transportation routes in an industrial park setting. The district integrates manufacturing, processing, research and development, and shipping activities in

addition to retail, dining, and convenience stores to enhance functionality and appeal for businesses and employees.

- b. **Applicability.** The BP district is applicable to areas on the edge of the community that are intended to support large-scale industrial, manufacturing, shipping, research and development, and data center uses. The district is typically found close to major transportation routes, making commercial uses appropriate. The district shall contain not less than 320 acres of land (interrupted only by roads, railroads, highways and natural features (such as ridges and waterways). Specifically, large-scale areas within the future land use designations in the comprehensive plan of Community Business, Mixed-Use Employment, and Industrial – including Community/Regional Activity Centers. Areas currently designated Agricultural/Rural (either inside or outside of the Urban Service Boundary) may also be appropriate for this zone district if near to regional transportation routes and if development of the area extends appropriate infrastructure.
- c. **Context.** This district is most appropriate in areas with large acreage and access to major regional transportation infrastructure.
- d. **Lot and Building Standards.** The following lot and building standards shall apply:

TYPE BP: Business Park District Lot and Building Standards		
Lot Area		n/a
Lot Frontage		n/a
Setbacks (Minimum)	Front Side Rear	All buildings shall be set back 25’ from all property lines adjacent to streets; 10 feet from all other internal property lines; and 25 feet from all property lines shared with another zone district.
Building Height		n/a
Maximum Coverage		90%

- e. **Permitted Uses.** The uses permitted in the BP district are specified in Table 5-1 as either "permitted" or "administrative" or "conditional."
- f. **Site and Building Design Standards.** Due to the nature of development and context of this zone district, the following development standards shall apply to development in the BP zone.
 - 1. **Parking, Lot Access, and Circulation.** The minimum required Automobile Parking standards of UDC 6.2.4.a shall not apply to property

- within the BP district.
2. **Landscaping.** Development shall comply with the standards of UDC 6.3, Landscaping Standards, with the following modifications:
 - (a) **Tree Requirement.** Instead of requiring tree points (UDC 6.3.4.a), every development shall plant one (1) tree for everyone hundred (100) feet of street frontage. Trees shall be planted within 100' of a right-of-way, within 15' of a parking lot, or within 20' of a building.
 - (b) **Shrub Substitution.** In lieu of planting trees, a developer may opt to plant six (6) shrubs as a substitute for each required tree.
 - (c) **Street Trees.** The Street Tree requirements of UDC 6.3.6 shall not apply.
 - (d) **Common Landscape Plan.** The submittal of a Common Landscape Plan and the standards within UDC 6.3.10 shall not apply.
 3. **Building Design Standards.** Any development not in the "Industrial Uses" category in Section 5.1.4, Table 5-1 shall comply with the design standards of UDC 6.9 (or UDC 6.8 if meeting the applicability of UDC 6.8).

Section 8. That Sub-section UDC 5.8.6 Outdoor Storage, of Section 5.8 Supplemental Provisions, of Article 5 Zoning Regulations is amended to read as follows: "Where Outdoor Storage is allowed, the storage area shall be screened from all adjacent streets with a Level 3 buffer as described in Section 6.3.5, Table 6-11. Where Outdoor Storage is allowed in the BP zone district, the storage area shall be screened from all adjacent streets with a 6' wall or solid fence (a landscape buffer is not required)."

Section 9. That Sub-section UDC 6.2.2.a General Applicability, of Sub-section 6.2.2 Applicability, of Section 6.2 Parking, Lot Access and Circulation, of Article 6 Design Regulations is amended to read as follows: "a. General Applicability. The standards in this section shall apply to all new construction and changes of use in all zoning districts, except that no parking is required in the CBD, SS, or BP districts or the UU Overlay District. When sites do elect to provide parking in the CBD, SS, or BP districts or the UU Overlay District, all maximum quantity, location, design standards and specific limitations in this Article shall apply."

Section 10. That Sub-section UDC 6.3.5.a Required Buffer Level of Sub-section 6.3.5 Screening and Buffering, of Section 6.3 Landscape Standards, of Article 6 Design Regulations is amended add BP and SS to Table 6-10 as follows:

TABLE 6-10: REQUIRED LANDSCAPE BUFFER LEVELS																	
Lowest District to Highest District																	
Hig	LI	LR	NR-1	NR-2	NR-3	MR	HR	MUR	MUB	NB	MUE	SS	CB	CBD	P	BP	HI
	LI	3	3	3	3	3	3	2	2	2	2	2	2	2	2	1	
		2	2	2	2	2	2	2	2	2		2	2	2	1		

BP	2	2	2	2	2	1	1							1			1
P	2	2	2	2	2	2	2	1	1	1	1	1			1	1	2
CBD	2				2											2	2
CB	2	2	2	2	2	1	1	1	1	1				1		2	2
SS	2	2	2	2	2	1	1							1		2	2
MUE	2	1			1							1		1			2
NB	2				1							1		1		2	2
MUB	2				1							1		1		2	2
MUR											1	1		2	1	2	2
HR	1									1	1	1		2	1	2	3
MR								1	1	1	2	2	2	2	2	2	3
NR-3											2	2		2	2	2	3
NR-2											2	2		2	2	2	3
NR-1										1	2	2		2	2	2	3
LR						1		2	2	2	2	2	2	2	2	2	3

Section 11. That sub-section UDC 6.5.4.b, Mixed-Use, Commercial and Industrial Zoning Districts, of Sub-section 6.5.4 Sign Allowances, of Section 6.5 Signs, of Article 6 Design Regulations is amended to read as follows: "The allowances in Table 6-16 apply to the NB, CB, CBD, MUR, MUB, MUE, LI, HI, AD, P, SS, BP, and PUD districts."

Section 12. That sub-section UDC 6.5.4.b, Mixed-Use, Commercial and Industrial Zoning Districts, of Sub-section 6.5.4 Sign Allowances, of Section 6.5 Signs, of Article 6 Design Regulations is amended to change the language for neighborhood identification signs as follows:

- "Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. In industrial business parks in the MUE, BP, and HI zone districts, the allowance for neighborhood identification signs may be up to 200 square feet per sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood."
- "No sign or structure supporting the sign shall exceed a height of 6'. In industrial business parks in the MUE, BP, and HI zone districts, sign structures may be up to 20' high, and neighborhood identification signs may be placed on prominent structures having a non-sign primary function (such as a water tower, cell tower, electrical facility, or similar)."

Section 13. That sub-section UDC 6.5.4.c.3, of Subsection 6.5.4.c Electronic Message Centers, of Sub-section 6.5.4 Sign Allowances, of Section 6.5 Signs, of Article 6 Design Regulations is amended to read as follows: "Electronic Message Centers may be allowed in the CB, MUB, CBD, P, AD, SS, BP, LI, and HI Districts, subject to the following:"

Section 14. That sub-section UDC 6.5.7.h, of Subsection 6.5.7 Prohibited Signs, of Section 6.5 Signs, of Article 6 Design Regulations, is amended to read as follows: "h. Animated signs, except in the CB, BP, LI, or HI districts."

Section 15. That sub-section UDC 6.5.8.a, of Subsection 6.5.8 Billboards, of Section 6.5 Signs, of Article 6 Design Regulations is amended to read as follows: "a. Billboards shall be permitted only in the MUB, CB, BP, LI, and HI zoning districts, except as provided in subsections (d) or (e)."

Section 16. That Sub-section 6.9.2, Applicability of Section 6.9 General Commercial Design Standards, of Article 6 Design Regulations is amended to read as follows:

These standards apply to community/regional activity centers, commercial buildings, or other similar areas where commercial buildings, with automobile orientation, can impact the community negatively unless designed in a coordinated manner. They apply in addition to any generally applicable design requirements of this Article, and the standards of Articles 4 and 5. Specifically, they apply to new construction and additions to buildings in the following zone districts:

- a. CB
- b. SS
- c. BP, for non-industrial development

Section 17. That the aforementioned sections of the UDC are hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 18. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 19. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

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Permitted Uses:

Residential Uses:

<none>

Civic Uses:

Community Athletic Field

Developed Athletic Field or Stadium

Service Uses:

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Service Business – General

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Entertainment, Indoor Recreation Facility

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Entertainment, Venue (1000+ maximum occupancy)

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Lodging, Hotel / Motel

Medical Care, Clinic and Office

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Employment Uses:

Home occupations

Office – Limited (<3,500)

Office – general (3,500 – 20K)

Office – Major Office Complex (>20K)

Commercial Uses:

Convenience Retail / Corner Store (<2k)

Neighborhood Retail (2K - 5K)

General Retail (5K - 25K)

Large-scale Retail (25K - 100K)

Warehouse Retail (> 100K)

Grocery Store <45K

Supermarket > 45K

Automobile Service Repair

Automobile Service Station - Limited

Automobile Service Station - General

Automobile Service Station – Large-scale

Food Service – Limited (under 2K)

Food Service – General (2K – 4K)

Food Service – Large-scale (over 4k)

Industrial Uses:

Data Center

Limited Industrial

Moderate Industrial

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Limited Outdoor Storage

Railroad yards and maintenance buildings

Public Service Uses:
Commercial and Public Parking Facility
Government Facility
Transportation facilities
Utility Stations
Agriculture Uses:
<none>

Administrative Uses
<none>

Conditional Uses:
Residential Uses:
Live/Work
Mixed-use Dwelling
Civic Uses:
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Primary and secondary schools
Educational Facilities
Service Uses:
Entertainment, Amusement, Recreation—Other
Storage, Yard
Employment Uses:
<none>
Commercial Uses:
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Outdoor Sales, Limited
Outdoor Sales
Industrial Uses:
Industrial
Public Service Uses:
Recycling Services
Agriculture Uses:
<none>

Section 7. That Sub-section 5.4.7 BP – Business Park, of Section 5.4 Commercial and Mixed-use Districts Standards of Article 5, Zoning Regulations, is created to read as follows:

5.4.7 BP-Business Park

- a. **Intent.** The Business Park (BP) district is intended to support small and large-scale industrial development while providing essential commercial services along regional transportation routes in an industrial park setting. The district integrates manufacturing, processing, research and development, and shipping activities in

addition to retail, dining, and convenience stores to enhance functionality and appeal for businesses and employees.

- b. **Applicability.** The BP district is applicable to areas on the edge of the community that are intended to support large-scale industrial, manufacturing, shipping, research and development, and data center uses. The district is typically found close to major transportation routes, making commercial uses appropriate. The district shall contain not less than 320 acres of land (interrupted only by roads, railroads, highways and natural features (such as ridges and waterways). Specifically, large-scale areas within the future land use designations in the comprehensive plan of Community Business, Mixed-Use Employment, and Industrial – including Community/Regional Activity Centers. Areas currently designated Agricultural/Rural (either inside or outside of the Urban Service Boundary) may also be appropriate for this zone district if near to regional transportation routes and if development of the area extends appropriate infrastructure.
- c. **Context.** This district is most appropriate in areas with large acreage and access to major regional transportation infrastructure.
- d. **Lot and Building Standards.** The following lot and building standards shall apply:

TYPE BP: Business Park District Lot and Building Standards		
Lot Area		n/a
Lot Frontage		n/a
Setbacks (Minimum)	Front Side Rear	All buildings shall be set back 25’ from all property lines adjacent to streets; 10 feet from all other internal property lines; and 25 feet from all property lines shared with another zone district.
Building Height		n/a
Maximum Coverage		90%

- e. **Permitted Uses.** The uses permitted in the BP district are specified in Table 5-1 as either "permitted" or "administrative" or "conditional."
- f. **Site and Building Design Standards.** Due to the nature of development and context of this zone district, the following development standards shall apply to development in the BP zone.
 - 1. **Parking, Lot Access, and Circulation.** The minimum required Automobile Parking standards of UDC 6.2.4.a shall not apply to property

- within the BP district.
2. **Landscaping.** Development shall comply with the standards of UDC 6.3, Landscaping Standards, with the following modifications:
 - (a) **Tree Requirement.** Instead of requiring tree points (UDC 6.3.4.a), every development shall plant one (1) tree for everyone hundred (100) feet of street frontage. Trees shall be planted within 100' of a right-of-way, within 15' of a parking lot, or within 20' of a building.
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Section 8. That Sub-section UDC 5.8.6 Outdoor Storage, of Section 5.8 Supplemental Provisions, of Article 5 Zoning Regulations is amended to read as follows: "Where Outdoor Storage is allowed, the storage area shall be screened from all adjacent streets with a Level 3 buffer as described in Section 6.3.5, Table 6-11. Where Outdoor Storage is allowed in the BP zone district, the storage area shall be screened from all adjacent streets with a 6' wall or solid fence (a landscape buffer is not required)."

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TABLE 6-10: REQUIRED LANDSCAPE BUFFER LEVELS																	
Lowest District to Highest District																	
Hig	LI	LR	NR-1	NR-2	NR-3	MR	HR	MUR	MUB	NB	MUE	SS	CB	CBD	P	BP	HI
	HI	3	3	3	3	3	3	2	2	2	2	2	2	2	2	1	
	LI	2	2	2	2	2	2	2	2	2		2	2	2	1		

BP	2	2	2	2	2	1	1							1			1
P	2	2	2	2	2	2	2	1	1	1	1	1			1	1	2
CBD	2				2											2	2
CB	2	2	2	2	2	1	1	1	1	1				1		2	2
SS	2	2	2	2	2	1	1							1		2	2
MUE	2	1			1							1		1			2
NB	2				1							1		1		2	2
MUB	2				1							1		1		2	2
MUR											1	1		2	1	2	2
HR	1									1	1	1		2	1	2	3
MR								1	1	1	2	2	2	2	2	2	3
NR-3											2	2		2	2	2	3
NR-2											2	2		2	2	2	3
NR-1										1	2	2		2	2	2	3
LR						1		2	2	2	2	2	2	2	2	2	3

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- b. SS
- c. [BP, for non-industrial development](#)

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THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

SEPTEMBER 3, 2024

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code to create a new zone district "BP Business Park" – to include modification to multiple sections of code to include references to "BP" where applicable. Also to correct the code to include references to "SS" where applicable.

CASE NUMBER: PLTA-24-6

PREPARED BY: Seth Lloyd, Senior Planner, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code to create the BP Business Park zone district and amending references to zoning districts by creating Section 5.4.7 and amending Sections 1.4.3, 5.1.2, 5.1.4 Table 5-1, 5.8.6, 6.2.2.a, 6.3.5.a, 6.5.4.b, 6.5.4.c, 6.5.7.h, 6.5.8.a, and 6.9.2 as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to create a new zone district "BP Business Park" in the UDC. The impetus behind the proposed text amendment is to create a zone district which closely matches the current County PUD for North Range Business Park. North Range Business Park is outside of City limits but uses City water and sewer with an Outside User's Agreement. The Outside User's Agreement requires the business park to annex once it becomes eligible (adjacent to City limits), and the park was made adjacent to City limits by a separate annexation earlier in 2024.

The BP zone is a combination of light industrial and community business zoning, allowing a mix of industrial, service, retail, and office uses. All but the most intense of non-residential uses are allowed. The business parks located on the edges of the community are often located along regional transportation routes. This location is attractive to regional-serving commercial uses, along with industrial uses. The proposed zone district was created with input from Cheyenne Leads on what types of businesses are locating in business parks.

There are areas of the City where parcels flip back and forth between commercial and industrial zoning depending on the specific project proposed. There is even a recent example of this occurring on a zone change request that came to planning commission in the last month. The BP zone could not only apply to North Range Business Park, but also other existing business parks in the City.

With the creation of a new zone district, multiple sections of code referencing zone districts by name also need updating. When the SS zone was established, not all of these sections were updated, so while these sections are opened to include the BP zone, the SS zone is being added at the same time.

The scale and location of business parks warrants some special consideration for design standards. The code amendment has BP adopt the design standards of 6.9 for non-industrial development, and gives some special design standard considerations for parking, landscaping, and neighborhood identification signage. A universally-applicable definition was added for 'caretaker unit' to give a path forward for a small living quarters on the same site as a industrial or commercial facility.

PROPOSED AMENDMENTS:

Attached is the complete language of the amendment in its Ordinance format. A summary of the amendments are as follows:

- Amend 1.4.3 to create a definition for 'caretaker unit', allowing said units to exist on properties in zones which would not normally allow residential or lodging type-uses. This gives a clear path forward for sites which desire to provide this type of accommodation
- Amend 5.1.2 to include BP and SS on the 'established zones' list
- Amend 5.1.4 to include the BP zone's allowed uses:
 - o Permitted uses: Community fields, service businesses, entertainment, office, retail, automobile repair, gas stations, restaurants, data center, rail services, non-polluting industrial uses, limited outdoor storage, government uses, utility stations.
 - o Conditional uses: mixed-use residential, assembly, schools, age-restricted entertainment, storage, outdoor sales, higher-intensity industrial
- Create 5.4.7 for the BP zone district
 - o Intent for a commercial-industrial zone near regional transportation routes
 - o Dimensional standards (setbacks, coverage, etc.)
 - o Minimum parking not required
 - o Landscaping exception for trees (tree points and street trees)
 - o Uses 6.9 (or 6.8 if applicable) design standards for non-industrial uses
- Amend 5.8.6 to reduce outdoor storage screening requirements in the BP
- Amend 6.2.2.a to indicate minimum parking is not required in the SS or BP zones
- Amend 6.3.5.a to include the BP and SS zones on the buffering requirements
- Amend various portions of 6.5 to give BP and SS similar sign allowances to the CB zone
- Amend 6.5.4.b to give business parks a larger neighborhood identification signage allowance
- Amend 6.9.2 to indicate the standards of 6.9 apply to non-industrial development in the BP zone

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

“The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan.”

This proposed text amendment is in accordance with the goals and policies of the Comprehensive Plan.

The Comprehensive Plan has a point designation entitled “Community/Regional Activity Center”. This designation is often found at interstate interchanges and are expected to “serve Cheyenne residents as well as residents of the surrounding region”. They are expected to “typically include large-scale retail and employment uses, mixed-use development and residential”.

The Comprehensive Plan also has a future land use designation “Mixed-Use Employment Campus”. This is anticipated to develop with “a variety of uses, with a primary focus on employment designed in a business campus setting”. While PlanCheyenne does encourage these areas to develop with a campus-like development (including plazas and pedestrian-friendly amenities), the examples given of existing Cheyenne ‘business campuses’ are really more ‘business parks’: Swan Ranch, North Range Business Park, and Cheyenne Business Parkway. None of these Cheyenne business parks have a true campus-like atmosphere like those found at places like the Denver Tech Center, the Anschutz Medical Campus in Aurora, or the Interlocken park in Broomfield.

The City does have a zone which is intended to catch the Comprehensive Plan’s vision for “Mixed-use Employment Campus”: the MUE zone. The current MUE Mixed-use Employment zone, as found in the zoning code, contemplates a very specific type of campus-style development. The type of development encouraged is small-scale industrial and commercial uses, with a significant office presence. Higher-intensity versions of retail, service, or industry are prohibited. Most of the City’s business parks are looking for higher-intensity uses, including specifically the higher-intensity commercial uses anticipated at major interchanges and encouraged by the comprehensive plan’s “Community/Regional Activity Center” designations at these interchanges. MUE design standards for the current MUE zone are centered around a unified, campus-like atmosphere, and is not as applicable to the disjointed, large-distance type of development often found in current Cheyenne business parks. There is a place for campus-style zoning, so Staff did not propose removing or replacing this zone district to accommodate the intent of the BP zoning.

The large swaths of “MUE” as designated in the Comprehensive Plan on the edges of the community could have a campus-style development, but to expect all such areas to develop with campus-style development is probably unrealistic. The BP zone is proposed to accommodate a mix of commercial and industrial uses in a business-park-style development pattern instead of a more compact business-campus-style development pattern.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

(d) All regulations shall be made:

(i) In accordance with a comprehensive plan and designed to:

- (A) Lessen congestion in the streets;
- (B) Secure safety from fire, panic and other dangers;
- (C) Promote health and general welfare;
- (D) Provide adequate light and air;
- (E) Prevent the overcrowding of land;
- (F) Avoid undue concentration of population; and
- (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.

Assessment: This amendment proposes amending the zoning code in accordance with the comprehensive plan and is in accordance with the purposes of state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment provides for a zone district tailored to the large business parks on the edges of the community. These parks provide economic benefits to the City, but the application of urban-level codes to these suburban-style (or even rural/exurban-style) areas has created challenges for development. Regulations and separation of uses that may be applicable in areas with large quantities of dense residential development may not be as necessary when applied to the large distances involved with business parks.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code to create the BP Business Park zone district and amending references to zoning districts by creating Section 5.4.7 and amending Sections 1.4.3, 5.1.2, 5.1.4 Table 5-1, 5.8.6, 6.2.2.a, 6.3.5.a, 6.5.4.b, 6.5.4.c, 6.5.7.h, 6.5.8.a, and 6.9.2 as outlined in this staff report.

Attachments:

1. Proposed Ordinance